

20STCV43019 20STCV43019

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-08-19

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Case Number: 20STCV43019 Hearing Date: August 19, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Eric Jones

;

Plaintiff,

vs.

Los Angeles Unified School

District

;

Defendant.

Case No.:

20STCV43019

Hearing Date:

August 19, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

(1) Motion
for Attorney's Fees

(2) Motion
to Tax Costs

MOVING PARTY: Plaintiff Eric Jones; Defendant Los
Angeles Unified School District

RESPONDING PARTY: Defendant Los Angeles Unified School District;
Plaintiff Eric Jones

(1) Motion
for Attorney's Fees

MOVING
PARTY: Defendant
Los Angeles Unified School District

RESPONDING
PARTY: Plaintiff Eric Jones

(2) Motion
to Tax Costs

The court considered the moving,
opposition, and reply papers filed in connection with these motions. The court
did not consider the response to the evidentiary objections in support of the
opposition to the motion for attorney's fees.

EVIDENTIARY

OBJECTIONS

The court overrules

Defendant's objections in support of its opposition to the motion for attorney's fees in their entirety.

DISCUSSION

Motion for Attorney's Fees

Plaintiff

Eric Jones ("Plaintiff") moves the court for an order awarding him attorney's fees in the amount of \$1,791,510.00.

First,

the court finds that Plaintiff is entitled to recover attorney's fees against defendant Los Angeles Unified School District ("Defendant") as the prevailing party in this action. (Gov. Code, § 12965, subd. (b); Amended Judgment entered November 5, 2025.)

Second,

the court finds that Plaintiff is entitled to recover fees on all claims because the claims were factually and legally intertwined in that they involved overlapping sets of witnesses, documentary evidence, and legal standards. Because of this intertwinement, apportionment of fees between the successful and unsuccessful claims would be impracticable. (Santana v. FCA US, LLC (2020) 56 Cal.App.5th 334, 349 [apportionment not required where claims so intertwined that apportionment would be impracticable or impossible].)

Third, the court

finds that Plaintiff's motion for attorney's fees is timely. A motion for attorney's fees must be served and filed within the time for filing a notice of appeal in an unlimited civil case. (Cal. Rules of Court, rule 3.1702(b)(1).) This deadline is 60 days after notice of entry of judgment is served or 180 days after entry of judgment, whichever is earlier. (Cal. Rules of Court, rule 8.104(a)(1).) The original judgment in this action, now amended, was entered July 3, 2025. Plaintiff's motion for attorney's fees was served and filed on August 29, 2025, less than 60 days after entry of judgment and thus less than 60 days after any notice of entry of judgment could have been given.

Fourth, the court finds that Plaintiff has established, as to the attorney's fees incurred to commence and prosecute this action and to prepare the pending fee motion, a lodestar of \$1,194,340.00

"[T]he fee setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. . . . The reasonable hourly rate is that prevailing in the community for similar work. The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided." (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095 (internal citations omitted); Reck v. FCA US LLC (2021) 64 Cal.App.5th 682, 691 ["To determine a reasonable attorney fee award, the trial court applies the lodestar method"].) The

"[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous." (Horsford v. Board of Trustees of California State Univ. (2005) 132 Cal.App.4th 359, 396.) The

The court finds that the reasonable hourly rates for the attorneys who performed work in this action are as follows: (1) \$850 for attorney Jared Irmias, and (2) \$950 for attorney George Moschopoulos. (Irmias Decl. ¶¶ 45-50; Moschopoulos Decl. ¶¶ 4-8, 20.)

The court has considered the billing records of Plaintiff's attorneys. (Irmias Decl. Ex. 1; Moschopoulos Decl. Ex. 1.) The court finds that Plaintiff's attorneys reasonably expended a total number of 1,372.9 hours (1,079.2 hours for Irmias and 293.7 hours for Moschopoulos) to commence and prosecute this action and to prepare the pending motion.

The court therefore finds that Plaintiffs have established a lodestar figure of \$1,194,340

$((1,079.2 \text{ hours} \times \text{Irmas's } \$850 = \$917,320.00) + (293.7 \text{ hours} \times \text{Moschopoulos's } \$950 \text{ hourly rate} = \$ 277,020.00))$.

Fifth, after

considering the factors the court may consider in determining whether to adjust the lodestar, the court finds that the lodestar figure should not be adjusted by applying a multiplier. (Irmas Decl. ¶¶ 21-38; Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 248 [setting forth factors delineated by the Supreme Court that the trial court may consider in adjusting the lodestar].)

Motion to Tax Costs

Defendant

moves the court for an order taxing portions of Plaintiff's Memorandum of Costs filed July 17, 2025.

"A 'verified

memorandum of costs is prima facie evidence of the propriety' of the items listed on it, and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary." (Adams v. Ford Motor Co. (2011) 199 Cal.App.4th 1475, 1486 [internal citation omitted].)

First,

the court grants Defendant's motion to tax costs as to (1) \$1,496.45 in "parking and transportation" costs under Item 15; (2) \$23,043.78 in "focus group" costs under Item 15; and (3) \$2,100.00 in "witness preparation" costs under Item 15, because they were not reasonably necessary to the conduct of the litigation, rather than merely convenient or beneficial to its preparation. (Code Civ. Proc., § 1033.5, subd. (c)(2).)

Second, the court finds that Defendant has

not met its burden to show that the challenged costs for (1) electronic presentation under "Models, Enlargements, and Photocopies of Exhibits"; (2) mediation fees; (3) lodging; and (4) court reporter fees were not reasonably necessary to the conduct of the litigation or were unreasonable in amount. (Code Civ. Proc., § 1033.5, subd. (c)(2)-(3).)

Third,

the court finds that Defendant has not met its burden to show that Plaintiff's expert fees are prohibited by Code of Civil Procedure section 1033, subdivision (b)(1). That provision bars expert witness fees when not ordered by the court or otherwise authorized by law. Expert witness fees are authorized by statute in FEHA actions, such as this one. (Gov. Code, § 12965, subd. (c)(6).)

Fourth,

the court taxes \$272.95 in jury fees under Item 2 based on Plaintiff's representation that the jury fees should be reduced. (Opposition p.10:8-14.)

ORDER

The court GRANTS

IN PART plaintiff Eric Jones's motion for attorney's fees as follows:

Pursuant to

Government Code section 12965, subdivision (b), the court orders that plaintiff Eric Jones shall recover from defendant Los Angeles Unified School District attorney's fees in the total amount of \$1,194,340.00.

The court GRANTS

IN PART defendant Los Angeles Unified School District's motion to tax costs.

The court orders

that the following costs are taxed from plaintiff Eric Jones's Memorandum of Costs filed July 17, 2025: \$272.95 in "Jury Fees" (Item 2); \$26,640.23 in "Other Costs" (Item 15), for a total of \$26,913.18 costs taxed.

The court orders

that plaintiff Eric Jones shall recover from defendant Los Angeles Unified School District costs in the amount of \$95,726.21 (\$122,639.39 total costs requested minus \$26,913.18 costs taxed = \$95,726.21).

The court orders plaintiff

Eric Jones to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 19, 2026

Robert B. Broadbelt III

Judge of the Superior Court